

24STCV14267 24STCV14267

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV14267 Hearing Date: August 5, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Kristine Klotz

;

Plaintiff,

vs.

City of Los Angeles

, et al.;

Defendants.

Case No.:

24STCV14267

Hearing Date:

August 5, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

DEMURRER

TO SECOND AMENDED COMPLAINT AND Motion to Strike Portions of SECOND AMENDED Complaint

MOVING PARTY: Defendant City of Los Angeles

RESPONDING

PARTY: Plaintiff Kristine Klotz

(1) Demurrer

to Second Amended Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this demurrer.

(2) Motion

to Strike Portions of Second Amended Complaint

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

REQUEST FOR JUDICIAL NOTICE

Defendant

City of Los Angeles ("Defendant") requests that the court take judicial notice
of (1) the Civil Rights Department (CRD) complaint filed by plaintiff Kristine
Klotz ("Plaintiff") dated June 7, 2024; and (2) the CRD's Notice of Case
Closure and Right to Sue dated June 7, 2024. The court grants Defendant's
requests pursuant to Evidence Code section 452, subdivisions (c) and (h).

DISCUSSION

Demurrer
to Second Amended Complaint

Defendant demurs to the first cause of action for employment discrimination and second cause of action for harassment in violation of the Fair Employment and Housing Act ("FEHA") as alleged against the City of Los Angeles in Plaintiff's Second Amended Complaint.

The court overrules Defendant's demurrer to the first cause of action because Plaintiff has alleged facts sufficient to state a cause of action for employment discrimination. (Code Civ. Proc., § 430.10, subd. (e).)

To state a claim for discrimination under FEHA, a plaintiff must allege: (1) membership in a protected class; (2) adverse employment action; and (3) a causal connection between the protected status and the adverse action. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 354.) Plaintiff alleges that she was transferred from LAPD's Robbery-Homicide Division to the Commercial Crimes Theft Task Force, a less-prestigious assignment that reduced her on-call and overtime opportunities, based on her sex and gender. (SAC ¶ 21.) Plaintiff also alleges that she was assigned "busy-work," "denied opportunities," and forced to "sign in and sign out" whenever she left the office for any reason, again based on her sex and gender. (SAC ¶ 23.) She also alleges that she was falsely accused of misconduct and demoted from Detective III to Detective I, both in retaliation for protected activity and based on her sex and gender. (SAC ¶ 25.) These allegations are sufficient. Contrary to what Defendant argues, Plaintiff is only required to plead the ultimate fact that she was targeted based on her sex or gender, not evidentiary facts supporting that allegation. (*Morris v. JP Morgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 282.)

The court overrules Defendant's demurrer to the second cause of action because Plaintiff has alleged facts sufficient to state a cause of action for harassment and has not exceeded the scope of the amendments authorized by the court. (Code Civ. Proc., § 430.10, subd. (e).)

First, the court finds that Plaintiff did not exceed the scope of the leave to amend granted by the court in its October 1, 2025 order. In that order, the court sustained the

defendants' demurrer to the second cause of action for harassment with respect to all of the individual defendants and sustained the demurrer as to the city based on the court's ruling as to the individuals. (Minute order filed October 1, 2025.) The court granted leave to amend as to defendants Scot Williams, Rob Petillo, Blanca Lopez, and the City of Los Angeles. (Id.) Plaintiff has alleged additional facts concerning the same harassing conduct for which she alleges Defendant is liable. The fact that Detective Marsden features more prominently in the Second Amended Complaint than in the First Amended Complaint does not affect the court's finding.

Second, the court finds that Plaintiff did not fail to exhaust her administrative remedies as to Detective Marsden. As part of her CRD Complaint, Plaintiff attached the letter which she submitted to the Board of Police Commissioners complaining, in part, about Detective Marsden's behavior. (RJN Ex. 1 [CRD Complaint] Ex. A.)

Third, the court finds that Plaintiff has adequately alleged severe or pervasive harassment sufficient to constitute a cause of action under FEHA. "[T]he prohibition against sexual harassment includes protection from a broad range of conduct, [including] the creation of a work environment that is hostile or abusive on the basis of sex." (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [quotations and citations omitted].) "To prevail on a claim of hostile work environment under FEHA, an employee must show he or she was subjected to harassing conduct that was (1) unwelcome, (2) because of sex or gender, and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment." (Wawrzenski v. United Airlines, Inc. (2024) 106 Cal.App.5th 663, 692.) "The working environment must be evaluated in light of the totality of the circumstances. These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance. The required level of severity or seriousness varies inversely with the pervasiveness or frequency of the conduct." (Bailey v. San Francisco Dist. Attorney's Office (2024) 16 Cal.5th 611, 628.)

Here, Plaintiff alleges a pattern of hostility and abuse based on her gender and sex sufficient

to constitute severe or pervasive harassment.

Plaintiff alleges that Detective Marsden and other LAPD employees would openly insult female detectives, including Plaintiff. (SAC ¶¶ 18-19, 28 [first, p. 5 lines 18-21].) Plaintiff also alleges that Marsden and Detective Lopez referred to a row of desks with several female detectives as “Figueroa Street,” as a euphemism for sex workers, and which Plaintiff understood as targeted at her as well as others. (SAC ¶¶ 28 [first, p. 5 lines 18-21], 22.) Plaintiff further alleges that she was transferred to a less-prestigious assignment, assigned “busy work,” forced to “sign in and sign out” whenever she left the office, falsely accused of misconduct, and demoted based on her sex and gender. (SAC ¶¶ 23-25.) Taken collectively, these are allegations of pervasive hostility to Plaintiff on the basis of her sex or gender. Because of the frequency and number of these incidents, the threshold of severity to allege harassment is reduced, and Plaintiff’s allegations meet that reduced threshold. The nature of certain allegations as “personnel management actions” is no barrier to the court’s finding, because managerial actions can constitute the means of conveyance of a hostile or offensive message based on a protected characteristic. (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 708.) It is this message that constitutes actionable harassment. (Ibid.)

Motion

to Strike Portions of Second Amended Complaint

Defendant moves the court for an order

striking (1) portions of the caption of Plaintiff’s Second Amended Complaint; (2) allegations pertaining to Los Angeles Police Department Detective Marsden and Defendant’s malicious, oppressive, or fraudulent conduct and ratification thereof; and (3) Plaintiff’s prayer for punitive damages.

The court grants Defendant’s motion to

strike portions of the caption pursuant to Plaintiff’s express agreement that the individual names should be stricken. (Opposition, p. 2 lines 4-6.)

The court denies Defendant’s motion to

strike as to the substantive allegations in the Second Amended Complaint. These allegations are not irrelevant, false, improper, and they are neither drawn nor filed out of conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.)

The court grants Defendant’s motion to

strike as to the prayer punitive damages pursuant to Plaintiff's express agreement to withdraw her prayers for punitive damages. (Opposition, p. 2 lines 7-9.)

ORDER

The court

OVERRULES defendant the City of Los Angeles' demurrer to the second amended complaint in its entirety.

The court GRANTS in

part defendant the City of Los Angeles' motion to strike without leave to amend.

The court orders

that the following names are stricken from the caption of the Second Amended Complaint: LOS ANGELES POLICE DEPARTMENT, a governmental entity; CHIEF MICHEL MOORE; DEPUTY CHIEF MARC REINA; DEPUTY CHIEF KRIS PITCHER; COMMANDER JAY MASTICK; CAPTAIN SCOT WILLIAMS; CAPTAIN ROBIN PETILLO; LIEUTENANT JAMES MYLONAKIS; LIEUTENANT BLANCA LOPEZ.

The court orders that

the prayers for punitive damages set forth on page 13, sections 1d, 2d, 3d, and 4d, on lines 4, 12, 20, and 28, respectively, are stricken.

The court orders

defendant the City of Los Angeles to file an answer to plaintiff Kristine Klotz's Second Amended Complaint within 10 days of the date of this order.

The court orders defendant

the City of Los Angeles to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 5, 2026

Robert B. Broadbelt III

Judge of the Superior Court